

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

Re:	)	CASE NO. 14-0187
Mental Health Counselor License of	)	
	)	
AMY JO MURPHY	)	NOTICE OF HEARING AND
License No. 00917	)	STATEMENT OF CHARGES
Respondent.	)	

COMES NOW the Iowa Board of Behavioral Science (“Board”) and files this Notice of Hearing and Statement of Charges against Amy Jo Murphy (“Respondent”), 12954 Margo St., Omaha, Nebraska 68138, pursuant to Iowa Code sections 17A.12(2) and 17A.18(3) (2013). Respondent’s license number 00917 is currently active and expires on September 30, 2016.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on February 5, 2015, before the Board. The hearing shall begin at 10:00 a.m. and shall be located in the Lucas State Office Building, 5th Floor Board Room #526, Des Moines, Iowa.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you are required by 645 IAC 11.12 to file an Answer. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges. Pleadings shall be filed with the Board at the following address: Iowa Board of Behavioral Science, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319.

Presiding Officer. The Board shall serve as presiding officer, but the Board may request an Administrative Law Judge from the Department of Inspections and Appeals make initial rulings on pre-hearing matters, and be present to assist and advise the Board at the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Pre-hearing Conference. Any party may request a pre-hearing conference to discuss evidentiary issues related to the hearing. The Board’s rules regarding pre-hearing conferences are found at 645 IAC 11.17.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier
Assistant Attorney General
Iowa Attorney General's Office
2nd Floor, Hoover State Office Building
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@iowa.gov.

Communications. You may contact the Board office at (515) 281-4422 with questions regarding this notice and other matters relating to these disciplinary proceedings. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154D, and 272C (2013).

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 17A, 147, 154D, and 272C and under 645 IAC 13 and 33.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

Count I

Respondent is charged with engaging in sexual activities or sexual contact with a client, pursuant to Iowa Code sections 154D.5, 147.55(8), 147.55(9), and 645 IAC 33.2(30).

Count II

Respondent is charged with engaging in unethical conduct by improper sexual contact with, or making suggestive, lewd, lascivious or improper remarks or advances to a client, pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(29)“b”.

Count III

Respondent is charged with engaging in practice harmful or detrimental to the public, pursuant to Iowa Code section 147.55(3) and 645 IAC 33.2(4).

Count IV

Respondent is charged with failing to comply with a subpoena issued by the board, or to otherwise fail to cooperate with an investigation of the board, pursuant to Iowa Code section 147.55(9) and 645 IAC 33.2(19).

Count V

Respondent is charged with fraud in procuring a license through false representation of a material fact or by concealment of that which should have been disclosed when making application for a license in this state, pursuant to Iowa Code section 147.55(1) and 645 IAC 33.2(2)“a”.

D. FACTUAL CIRCUMSTANCES

1. Respondent owns AJ Counseling Services, with four office locations in Iowa and Nebraska.
2. In 2012, client #1 and client #1's spouse began marital counseling with Respondent out of her office in Corning, Iowa.
3. Client #1 continued individual counseling with Respondent after martial counseling ceased.
4. Respondent and client #1 began a romantic and sexual relationship while client #1 was seeing Respondent for individual counseling.
5. Respondent failed to respond to a subpoena issued by the Board requesting records regarding client #1.
6. In March, 2012, Respondent entered into an Assurance of Compliance with the State of Nebraska regarding her Nebraska license to practice as a mental health practitioner for failing to maintain professional boundaries.
7. In September, 2012, Respondent answered “No” to the question, “Since 10/01/2010 have you been investigated by a licensing, registration, or certification authority or organization?” on her license renewal application.

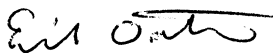
E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing

settlement in this matter, please contact Assistant Attorney General Laura Steffensmeier at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On this 6th day of November, 2014, the Iowa Board of Behavioral Science found probable cause to file this Notice of Hearing and Statement of Charges.



ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Steffensmeier
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319